

# Founder Agreement Template

Mitsue Project — Founding Members

**Draft for discussion — not a final legal document**

## Important Note

This is a **template for an early-stage, informal founder agreement** designed to align expectations between founding members **before** formal NPO/Ippan Shadan Hojin incorporation. Once the legal entity is established, formal bylaws (定款) will supersede this document.

**This is not a substitute for legal review.** Before any founder signs, both parties should review with a Japanese lawyer or 行政書士. This template is meant to surface and resolve key questions early — not to replace formal legal documentation.

## Founder Agreement

This Agreement is entered into between the founding members of the **Mitsue Project** ("the Project"), an initiative to establish an integrated sustainable energy, forest restoration, and digital infrastructure project in Mitsue Village, Nara Prefecture, Japan.

### Founding Members:

- \_\_\_\_\_ (hereafter "Founder A")
- \_\_\_\_\_ (hereafter "Founder B")
- \_\_\_\_\_ (hereafter "Founder C") [additional members as applicable]

**Effective Date:** \_\_\_\_\_

## Article 1 — Purpose and Mission

The Founders share commitment to the mission of the Mitsue Project as set out in the Founding Charter dated \_\_\_\_\_. Each Founder has read, understood, and supports this Charter.

## Article 2 — Roles and Responsibilities

Each Founder agrees to contribute to the Project in the following capacity. Roles may evolve as the Project grows but initial commitments are:

| Founder   | Initial Role                   | Time Commitment       | Compensation                |
|-----------|--------------------------------|-----------------------|-----------------------------|
| Founder A | [e.g. Representative Director] | [e.g. ~10 hours/week] | [Volunteer / stipend / TBD] |
| Founder B | [e.g. Technology Lead]         | [hours/week]          | [Volunteer / stipend / TBD] |
| Founder C | [e.g. Forestry Liaison]        | [hours/week]          | [Volunteer / stipend / TBD] |

Founders agree to communicate proactively if their availability or commitment changes.

## Article 3 — Decision-Making

Until formal incorporation, decisions of the founding group shall be made as follows:

- **Routine decisions** (operational, day-to-day): may be made by the relevant Founder in their area of responsibility.
- **Significant decisions** (financial commitments above ¥100,000, public communications, partnerships, hiring): require consensus among all Founders.
- **Major decisions** (mission changes, founder additions or departures, legal incorporation): require unanimous written agreement.

If consensus cannot be reached, Founders agree to seek mediation from a mutually trusted advisor before any unilateral action.

## Article 4 — Intellectual Property

- Any intellectual property developed by Founders specifically for the Project shall be owned by the Project (once incorporated) or held collectively by the Founders (until incorporation).
- Any intellectual property a Founder brings to the Project from prior work remains their property; they grant the Project a perpetual, royalty-free license to use it for Project purposes.
- All technical knowledge, designs, and data produced for the Project shall be released under open licenses (Creative Commons or equivalent) consistent with the Project's open-knowledge principles.

## Article 5 — Financial Contributions and Liabilities

- Founders are not personally liable for Project debts or obligations beyond their own commitments.
- Initial financial contributions by Founders shall be documented and treated as either donations, loans, or capital contributions, as agreed in writing for each contribution.
- No Founder may unilaterally commit the Project to financial obligations exceeding ¥100,000 without consensus.

## Article 6 — Confidentiality

Founders agree to keep confidential:

- Sensitive partner negotiations
- Personnel matters
- Donor information not yet public
- Any other matters explicitly designated as confidential

This obligation continues for two years after a Founder's departure from the Project.

#### Article 7 — Conflict of Interest

Founders shall disclose any conflicts of interest, including:

- Other organizational affiliations relevant to the Project's work
- Family or business relationships with Project partners or vendors
- Financial interests in companies the Project may engage with

Conflicted Founders shall recuse themselves from related decisions.

#### Article 8 — Departure of a Founder

If a Founder wishes to leave the Project, they shall:

- Provide at least 60 days written notice where possible
- Cooperate in transition of responsibilities
- Return any Project materials in their possession
- Abide by the confidentiality provisions of Article 6

A departing Founder shall not be entitled to any financial compensation beyond what was previously agreed in writing.

#### Article 9 — Removal of a Founder

A Founder may be removed from the founding group by unanimous vote of the remaining Founders, only in cases of:

- Serious breach of this agreement or the Founding Charter
- Conduct that materially harms the Project's reputation or mission
- Sustained inability or unwillingness to fulfill agreed responsibilities

A Founder facing removal shall have the opportunity to be heard before any vote.

#### Article 10 — Transition to Formal Entity

The Founders agree that upon incorporation of the Project as a 一般社団法人 or other legal entity:

- This Agreement shall be replaced by formal bylaws (定款)
- Founders shall transfer any Project assets to the legal entity
- Each Founder shall be considered for, but not guaranteed, a role in the formal organization

#### Article 11 — Dispute Resolution

Founders agree to resolve disputes in the following order:

1. Direct discussion between the Founders involved
2. Mediation by a mutually agreed third party (a respected advisor or community member)
3. Formal mediation through the Japan Arbitration Association or equivalent body
4. Legal action only as a last resort

#### Article 12 — Governing Law

This agreement is governed by the laws of Japan. The agreement is drafted in both English and Japanese; in case of discrepancy, the **Japanese version shall prevail** for matters relating to interpretation under Japanese law.

#### Article 13 — Amendments

This agreement may be amended only by unanimous written agreement of all current Founders.

#### Signatures

By signing below, each Founder confirms that they have read this Agreement, had opportunity to seek independent advice, and accept its terms.

**Founder A:** \_\_\_\_\_ Date: \_\_\_\_\_

**Founder B:** \_\_\_\_\_ Date: \_\_\_\_\_

**Founder C:** \_\_\_\_\_ Date: \_\_\_\_\_

#### Appendix — Topics for Discussion Before Signing

These are common founder-agreement issues that benefit from explicit conversation **before** signing. We strongly recommend the founding group discusses each item:

1. **What if Rob has to leave Japan?** — succession planning
2. **What if a major funder requests changes** that conflict with the Charter?
3. **How do we handle media requests** — who speaks for the Project?
4. **What happens to Rob's existing relationships** (Safecast, YR-Design) — are these separate?
5. **What is the role of the village** in formal governance? Advisory? Veto power?
6. **How do we add new founders** later?
7. **What if Joi Ito or Ray Ozzie wishes to become more than an advisor?**

8. **At what stage do we start paying salaries**, and to whom first?

9. **What if a founder's personal financial situation changes** and they need to monetize their contribution?

10. **How do we handle disagreement** about the pace of public announcements?

These conversations are uncomfortable but vastly easier now than when the Project has money, partners, and public visibility.

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*Draft prepared April 2026 — to be reviewed by qualified Japanese legal counsel before execution.*